

The Industrial Disputes (Central) Rules

FORM C

(See Rule 7)

Under Section 10-A of the Industrial Act, 1947)
Between

Name of the parties.

Representing employers”

Representing workmen/workman:

It is hereby agreed between the parties to refer to following industrial dispute to the arbitration of _____
(here specify the name(s) and address(es) of the arbitrator(s).]

- i. Specific matters in dispute
- ii. Details of the parties to the dispute including the name and address of the establishment or undertaking involved
- iii. Name of the workman in case he himself is involved in the dispute or the name of the Union, if any representing the workmen or workman in question.
- iv. Total number of workmen employed in the undertaking affected.
- v. Estimated number of workmen affected or likely to be affected by the dispute.

We further agree that the majority decisions of the arbitrator(s) be binding on us/in case the arbitrators are equally divided in their opinion, that they shall appoint another person as umpire whose award shall be binding on us.

The arbitrator(s) shall make his (their) award within a period of _____
(here specify the period agreed upon by the parties) from the date of the publication of this agreement in the Official Gazette by the Appropriate Government or within such further time as is extended by mutual agreement between us in writing. In case the award is not made within the period aforementioned, the reference to arbitration shall stand automatically and we shall be free to negotiate for fresh arbitration.

Signature of the parties:

Representing employer”

Workman/Representing Workman/Workman

Witnesses:

1.

2.

Copy to:

- i. The Assistant Labour Commissioner (Central) _____
_____(here enter the office address of the Assistant Labour Commissioner (Central) in the local area concerned)
- ii. The Regional Labour Commissioner (Central)
- iii. The Chief Labour Commissioner (Central), New Delhi
- iv. The Secretary to the Government of India, Ministry of Labour, Employment and Rehabilitation (Department of Labour and Employment), New Delhi.